

Review of Canadian Patent Law – SPLH Topics under Discussion by the Group B+

GRACE PERIOD / NON-PREJUDICIAL DISCLOSURES	
Issue	Details
Patent Act:	Paragraphs 28.2(1)(a) and (b) and 28.3(a) and (b)
Patent Rules:	N/A
Duration:	12 months
Calculated from:	Filing date in Canada
Covering all types of disclosures by, for or derived from the inventor or their successor in title, regardless of medium or forum, and regardless of whether intentional or not	Yes
Disclosures resulting from the proper publication of an application by an office at 18 months are not graced	No. These disclosures are graced. The grace period in Canada applies to an applicant's own previously published application.
Disclosures of independent inventions made by a third party form part of the prior art (i.e. are not graced)	Yes.
Burden of proof	Applicant.
Statement or declaration requirement	No.
Publication of the application for which the grace period has been invoke	Publication of the application is at 18 months from the priority date. This is not affected when an applicant relies on the grace period.
Grace period may be invoked throughout the life of the patent	Yes.
On-sale bar	There is no on-sale bar in Canada.
Defence of Intervening User (DIU)	N/A. This is a concept presented by the Industry Trilateral in the 2021 "Elements" paper.

PRIOR USER RIGHTS (PURs)	
Issue	Details
Patent Act:	Section 56
Patent Rules:	N/A
Commercial use or serious and effective preparations to use may give rise to PURs	Yes, see subsection 56(1).
Conditions for the PUR to arise	Must perform an act that would otherwise constitute infringement of the patent, or make serious and effective preparations to do so.
Critical date: qualifying activities must take place prior to earliest of the filing or priority date	Yes (based on Claim Date). See sections 56 and 28.1.
PURs when use based on non-public information derived from the applicant without his consent	No, Provided they knew that the applicant was the source of knowledge. See subsection 56(5).
Use based on independent invention by the third party gives rise to rights	Yes
Good faith requirement for PURs to accrue	Yes
Prior user rights if the third party has derived his knowledge of the invention from the applicant, e.g. through a PFD.	No, provided they knew that the applicant was the source of knowledge.
Exceptions to the principle of PURs based on the nature of the entity holding the patent or the field of technology	No, PURs apply to all patents and entities.
Burden of proof that prior activities justify a PUR	On prior user claiming the PUR.
Scope of PURs change in embodiments	PUR applies on a claim-by-claim basis. Prior user may make changes so long as they do not relate to the inventive concept of the patent (see <i>Kobold Corporation et al v NCS Multistage Inc</i> , 2021 FC 1437).
Loss of rights	N/A
Transfer of PURs permitted only if transferred together with the related business within which it accrued	Yes, see subsection 56(2).
Licensing under the PUR permitted?	No
Territorial scope of PURs limited to the country in which the prior use/preparations took place	N/A (Patent Act only applies in Canada).

CONFLICTING APPLICATIONS	
Issue	Details
Patent Act:	Paragraphs 28.2(1)(c) and (d);
Patent Rules:	N/A
“Distance” between the two applications, i.e. difference in content between the first and the second application.	Novelty (secret prior art).
Whole contents approach* to assessing earlier application	Yes. The later filed application must be novel over the whole contents of the earlier filed application that is secret prior art.
Anti-self-collision applies	Yes, the same applicant’s earlier patent application that is secret prior art against their later patent application cannot be cited for novelty.
Anti-double-patenting	Same applicant - No two patents shall issue with claims to the same invention or claims that are not patentably distinct. <i>see GlaxoSmithKline Inc. v. Apotex Inc. 2003 FCT 687 and Whirlpool Co. v. Camco On. 2000 SCC 67</i> For the purpose of assessing obviousness type double patenting claims are to be given a purposive construction based on a reading of the specification through the eyes of the skilled person, taking into account their common general knowledge (CGK). If the claims of the existing patent, when understood by the person skilled in the art in light of the CGK on the <i>claim date</i> and the teachings of the specification as a whole, anticipate or render obvious the claims of the application being examined, the claims are not patentably distinct from each other.
PCT applications should form conflicting applications and become secret prior art at:	Upon national entry into Canada. The date of publication of the application, as

	is the case for all other co-pending applications.
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* Whole contents approach is primarily an expression used in Europe. When considering a previously filed application that is secret prior art, the entire contents of the application forms secret prior art for a later filed application. This is in contrast to a prior claiming approach where only subject matter which has been claimed in a prior application forms part of the secret prior art against the later filed application. Dependent on the jurisdiction there may be a distinction between whether the later filed application is filed by the same applicant as the earlier filed application or by a different applicant.